

The Organism-Making Machine: Constitutional Chimera, Structural Hyperregulation, and Artificial Intelligence as Stress Test

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Abstract

This paper proposes that Argentina's tendency to hyperregulate emerging technologies is not a political or cultural trait but a structural consequence of what I term the "constitutional chimera": the coexistence, without synthesis, of two incompatible memetic complexes — one of French origin (state prerogatives, public service, general interest) and one of North American origin (individual rights, diffuse judicial review, equality before the law). Each new technology posing diffuse risks simultaneously activates both arms of the chimera, generating double regulatory pressure that neither system alone would produce. Artificial intelligence, which affects all categories of constitutional rights and all areas of public policy simultaneously, is the most intense stimulus this mechanism has ever processed. The paper integrates three prior frameworks by the author: the cuckoo brood parasite model (Paper 10, Lerer 2025a), the institutional palimpsest and memetic pincers (Lerer 2025b), and Dawkins's tripartite taxonomy of the extended phenotype (1982), applied specifically to the problem of regulatory output in contexts of high institutional field distortion. I propose that the three modalities of the extended phenotype — architectural construction, parasitic manipulation, and action at a distance — operate simultaneously in Argentine AI regulation, and that this simultaneity produces regulatory phenotypes with predictable characteristics: high construction velocity, high resistance to subsequent change, and low correlation between formal structure and substantive effectiveness.

Keywords: artificial intelligence, hyperregulation, extended phenotype, constitutional chimera, Argentina, legal memetics, institutional parasitism

JEL Classification: K20, K30, L50, O30

1. A Debate That Cannot Be Resolved

In a professional network for lawyers, at some point in 2025, two Argentine attorneys with solid credentials exchanged positions on the regulation of artificial intelligence. Neither made technical errors. Neither ignored relevant doctrine. Both invoked valid norms and coherent reasoning. And yet they failed to converge.

One argued that imposing liability on those who design and operate AI systems does not constrain innovation but demands architecture: clear operational limits, effective supervision, decision traceability, explicit distribution of responsibilities. The argument had the elegance of well-constructed positions: not more state, but better design. Innovation with architecture, not innovation without consequences.

The other replied that the duty of prevention under articles 1710 and following of the Civil and Commercial Code already structures that requirement within civil law, without the need to transfer it to administrative law. The Code has existed since 2015. So has the strict liability for risk created under article 1757. No normative gap justifies creating new instances for what the system already provides.

Both were right. That is the problem.

In a coherent legal system, one of the two arguments would be clearly correct. Systemic coherence has that property: when two positions are incompatible, at least one is incorrect or incomplete. But the Argentine legal system is not coherent in that sense. It contains two foundational logics that produce distinct mandates for the same phenomenon, and that duplicity is not a correctable historical anomaly: it is the architecture of the system.

The exchange is not anecdotal. It is diagnostic. It reproduces in miniature the mechanism this paper proposes as the generative cause of hyperregulation: when a legal system contains two incompatible logics, any technology posing diffuse risks activates both simultaneously, and the sum of two independent regulatory mandates produces more regulation than either alone would justify.

AI did not arrive into a normative vacuum. It arrived into a system overdetermined with grounds for intervention.

2. The Chimera and Its Generative Mechanism

Héctor Mairal identified forty years ago what he described as a "curious paradox": Argentina has a Constitution inspired by the United States but interpreted through French administrative law (Mairal, 1984, vol. I, p. XVIII). Manuel García Mansilla reformulated it as inserting a square peg into a round hole (García Mansilla, 2014, p. 650). Neither developed the evolutionary consequences of that incompatibility for regulatory output.

The Constitution of 1853, drafted under the decisive influence of Alberdi, took from North American constitutionalism four memes with durable institutional consequences: strict separation of powers (Arts. 1, 44-120), constitutional supremacy (Art. 31), implicit judicial review through the combination of Arts. 31 and 116, and a catalogue of individual guarantees (Arts. 14-20) that converts each right into an active protection mandate. The text arrived without the substrates that made it function in its place of origin: no common law tradition, no political culture of distrust toward state power, no civil society with strategic litigation capacity.

The administrative law Argentina constructed from 1890 onward took a different path. The legal elites of the Generation of Eighty trained in France, not the United States; French was the language of culture, English was marginal. The Conseil d'État model, Léon Duguit's public service theory, Maurice Hauriou's distinction between acts of authority and acts of management: all of this arrived during the years Argentina needed to build infrastructure, regulate public services, and justify the prerogatives of a developmentalist state. The French model provided them; the North American model did not.

The result was not a hybrid system in the sense of deliberate synthesis. It was a chimera in the precise biological sense: an organism with two genetically distinct cell lines coexisting in the same body without fusion. The Constitution mandates that the state is an equal subject to the same rules as private parties (Arts. 16, 18). Law 19,549 on Administrative Procedure establishes the presumption of legitimacy and executive force of administrative acts (Art. 12), which inverts that equality. Both texts are in force. Both are applied. Both are, within their own logic, correct.

This produces what I term a **double activation mechanism**: when any new phenomenon poses social risks, the French arm of the chimera generates the mandate "the state must protect the general interest through administrative structure" and the North American arm generates the mandate "constitutional rights are at stake and require active protection." Both mandates point to the same operational conclusion: create something. An organism, a registry, a standard, a certification, an implementing authority.

The difference from a coherent system is not quantitative but structural. In France, the proliferation of regulatory bodies has an institutional brake: the Conseil d'État reviews whether each new structure is necessary and proportional. In the United States, the non-delegation doctrine and the Administrative Procedure Act impose high justification costs on discretionary agency expansion. Argentina imported the organism-creation prerogatives of both systems but neither of their containment mechanisms. The extended administrative phenotype grows; the pruning mechanisms never arrived.

3. The Three Modalities and AI Regulation

The tripartition Dawkins developed in *The Extended Phenotype* (1982) is not a descriptive classification of phenotypes but a map of causal mechanisms with distinct evolutionary logics. Applying it to the problem of regulatory output reveals that hyperregulation is not a unitary phenomenon: it is the superposition of three independent processes that, when operating simultaneously on the same object, produce a regulatory volume that none alone would justify.

Architectural construction is the most visible mechanism. The beaver builds a dam that persists generations after the beaver that built it; the dam modifies the ecosystem in ways that favor the survival of the beaver's genes in subsequent generations. A regulatory body created to manage AI risks operates the same way: it exists in the institutional world beyond the legislators who created it, builds its own doctrine, trains specialists in its perspective, generates statistics demonstrating the magnitude of the problem it manages, and produces

regulations creating new risk subcategories requiring new structures. The dam transforms the ecosystem so that the beaver becomes indispensable. The regulatory body transforms the normative ecosystem so that it becomes indispensable.

In the Argentine chimera, architectural construction has double intensity because both logics independently produce it. The French arm builds the organism because the service-providing state needs to manage the technological general interest. The North American arm builds the organism because each constitutional right threatened by AI requires a structure to protect it. Two independent architects working on the same lot.

Parasitic manipulation operates less visibly but with more durable consequences. *Toxoplasma gondii* constructs nothing external: it reconfigures the rat's nervous system to seek the cat that will destroy it. The parasite is invisible, leaves no trace in the environment, operates from inside the host. In prior work (Lerer, Paper 10, 2025a), I documented this mechanism in compliance programs under Law 27,401 of 2017: companies implement integrity programs not because they have assessed that such programs reduce the risk of illicit conduct, but because the regulatory ecosystem modified their incentive structure so that not implementing them has higher costs than implementing them, regardless of substantive effectiveness. The Cuckoo Displacement Index (CDI) of programs classified as BASIC or COSMETIC averaged 9.00 against 1.04 for GENUINE programs, in a sample of 11 Argentine companies with verifiable data between 2017 and 2025.

AI regulation will replicate that pattern faster than Law 27,401 did. When the standard of "enhanced diligence" in AI system design becomes enforceable — whether through Art. 1710 of the Civil and Commercial Code or through specific legislation — the technology compliance industry will produce certification protocols, algorithm audits, digital ethics committees, and impact reports with the same parasitic structure: high visibility, low substantive effectiveness, high CDI from the first regulatory cycle. The parasite arrives before the regulatory organism because it does not need to wait for specific legislation: uncertainty is sufficient.

Action at a distance is the most difficult modality to identify because the causal mechanism is not visible. The cuckoo chick manipulates the feeding behavior of its foster parents from the nest without constructing anything external or parasitizing the host from inside: it emits signals that travel through space and produce effects in organisms that never had direct contact with the original replicator. The EU AI Act, in force since August 2024 with progressive application through 2027, produces regulatory effects in Argentina without treaty, without formal transplant, without any explicit incorporation mechanism. It produces effects because it emits signals that the global technocratic ecosystem receives and retransmits.

The mechanism is not economic in the direct sense that Anu Bradford describes as the "Brussels Effect" (Bradford, 2020). Technology companies operating in Argentina do not adopt EU AI Act standards because their products access the European market; most do not, at any significant scale. They adopt them because the professional and academic ecosystem in which their lawyers, compliance directors, and governance consultants operate signals that this is the reference standard. This is the epistemological tribalism Dawkins described in Boston in January 2026 when explaining climate change denial: "if your tribe believes X, you believe X." It is not that the evidence is insufficient. It is that the identity of the global techno-regulatory

ecosystem establishes that "regulating AI is what competent jurisdictions do," and Argentina follows that signal not through analysis but through belonging.

The three mechanisms operate simultaneously on Argentine AI regulation. That had not occurred with any previous technology in the same compressed timeframe.

4. Fisher's Argument and the Size of Regulatory Mutations

Ronald Fisher demonstrated in 1930, in a proof that Dawkins revisits across multiple works and that Steven Pinker explicitly connected in January 2026 to the training of artificial intelligence models, that the probability of a mutation being adaptive decreases as its size increases. The demonstration uses a slightly out-of-focus microscope as a model: if you adjust the tube a minimal distance, there is approximately a 50% probability of improving focus. If you adjust it a large distance, the probability of improvement converges to zero. Large jumps do not lead to the summit of the improbable mountain; they lead to dead territory.

The implication for institutional reform design is direct and has not been formalized in the Argentine administrative law literature. The twenty-three labor reform attempts documented between 1991 and 2025 (Lerer, 2025c) failed with a consistency that traversed eight governments of opposing ideologies, from Menem's Peronism to Milei's libertarianism. The Constitutional Lock-in Index (CLI) for the Argentine labor regime is 0.87 out of 1.00, correlated with 0% sustained reforms. The standard interpretation is that the CLI reflects the system's resistance to change. Fisher suggests an additional reading: all those attempts were large mutations. Menem attempted to reform the collective bargaining system entirely in 1994 with Law 24,467. De la Rúa attempted to modify the ultra-activity of collective agreements with Law 25,250 in 2000, repealed two years later. Macri launched a labor package in 2017 that barely overlapped with tax reform without surviving in its original form. Milei signed Executive Order 70/2023 with 366 articles. None applied the microscope logic.

The AI regulation Argentina is building in 2025 replicates that pattern with a different technology. Legislative bills introduced in the National Congress between 2023 and 2025 mostly propose comprehensive regulatory frameworks that classify systems by risk level, create implementing authorities with broad powers, establish mandatory registries, and set transparency and explainability standards. That is the equivalent of moving the microscope tube twenty centimeters. The probability that such a movement will improve focus, in an environment where technology changes faster than the legislative cycle, is mathematically negligible.

The EU AI Act took four years of negotiation among the European Commission, Parliament, and Council, with a specialized bureaucracy of thousands of officials and a budget of approximately 390 million euros for the initial implementation phase. Argentina does not have that apparatus. What it has is the chimera's double activation mechanism, which produces the same regulatory ambition without the resources to sustain it. The predictable result is not effective regulation but formal regulation: an architectural phenotype with high documentary mass and low enforcement capacity.

Fisher does not say that reform is impossible. He says that the direction of change matters as much as its magnitude. A reform that moves the microscope tube one millimeter in the correct direction has a real probability of improvement. Gradualism is not political timidity: it is the only algorithm that works in complex systems, and it is the same algorithm that trains the AI models whose regulation is being debated.

5. The Regulatory Book of the Dead

Dawkins proposes in *The Genetic Book of the Dead* (2024) that each organism can be read as a coded archive of the environments where its ancestors survived. The Mojave Desert lizard carries painted on its skin the landscapes that selected its ancestors over millions of years. The bat carries in its cerebral cortex, recycled for echolocation, the record of dark caves and nocturnal prey that shaped its lineage. Each adaptive structure is forensic evidence of past selective pressures.

Legal systems function the same way, with a difference in temporal scale. Argentina processed fifteen major institutional crises since 1930, by the conservative count of the work on memetic palimpsests (Lerer, 2025b). Each crisis left normative layers that remain simultaneously active, creating what that work called resonance effects: any new disturbance amplifies by activating several layers at once. The Institutional Field Distortion Index (IFDI) calculated for Argentina in that work is 3.15, against 0.017 for Germany — a difference of 185 times that correlates with the divergence between the 91% collapse in rental supply in Argentina and 41% in Berlin under similar policies.

The AI regulation Argentina is writing in 2025 does not describe the real risks of artificial intelligence. It describes, in the available technological language, the institutional traumas the Argentine legal system has carried coded for decades.

The concern about the concentration of technological power in a few companies, appearing in nearly all reviewed AI legislative bills, is not a response to the structure of the AI market. It is the gene of distrust toward economic concentration that has been active since the nationalizations of the 1940s and the long saga of tensions between foreign capital and the Argentine state. OpenAI and Google are the new English railways, and the legal system processes them with the tools it built for those.

The concern about informational manipulation through generative AI has its direct ancestor in Art. 36 of the Constitution, incorporated in 1994, which declares void *ab initio* the acts of those who usurp power and authorizes all citizens to resist them. That clause codifies the trauma of six coups d'état between 1930 and 1976. Translated into AI language, it produces norms treating recommendation algorithms as potential instruments of anti-democratic manipulation, with the same logic that led to including the anti-institutional corruption clause in the constitutional text.

The concern about privacy and personal data is Art. 19 of 1853 rewritten in digital terms, with additional density from Law 25,326 of 2000 and the constitutional habeas data clause (Art. 43, incorporated 1994). The system already has antibodies for privacy invasion;

AI activates all those antibodies simultaneously because it can affect privacy at a scale no previous technology reached.

None of these concerns is unreasonable. The problem is not in the values they express but in the fact that the legal system can only encode new threats in the language of ancestral threats it already has registered. This produces two types of mismatch. The first is thematic: regulation attacks risks the system recognizes because they resemble prior risks, and omits genuinely new risks that have no ancestor in the palimpsest. The second is structural: the available institutional responses were designed for other environments, with different rates of change and different proportions between regulation cost and risk magnitude.

Reading Argentine AI regulation as a book of the dead reveals which selective pressures built it. It does not predict whether that regulation will be effective: it predicts what form it will take and what it will omit.

6. Falsifiable Predictions

A theoretical framework that produces no falsifiable predictions is mythology disguised as science. The following six predictions are ordered from most to least testable in the short term with available or accessible data.

P1: Argentine AI regulation will create more new organisms than reforms of existing organisms. The double activation mechanism predicts architectural construction, not reorganization. If in the twelve months following the enactment of any general AI norm in Argentina the number of new institutional units created exceeds the number of existing units to which AI competencies are assigned, the prediction is verified. Falsification: that the norm assigns all competencies to existing organisms without creating any new structure.

P2: AI compliance programs will show high CDI from the first regulatory cycle. Applying the methodology of Paper 10 (Lerer, 2025a), the first AI risk management programs adopted by Argentine companies in the twelve months following the enactment of specific legislation will show a mean CDI above 3.0. Falsification: mean CDI below 2.0, which would indicate that technology compliance operates with different logic than anticorruption compliance.

P3: Argentine AI legislative bills will invoke constitutional rights across more distinct categories than equivalent bills in Chile and Uruguay. Testable through content analysis of bills introduced between 2023 and 2025 in the three countries, coding the rights categories invoked. Falsification: that Argentina does not show more categories invoked than Chile or Uruguay.

P4: Textual similarity between enacted Argentine AI regulation and the EU AI Act will exceed 60%. Action at a distance predicts direct importation of structure and language, with minor local adaptations. Falsification: similarity below 40%, which would indicate independent doctrinal development.

P5: The average time between enactment and first substantive reform of Argentine AI regulation will be less than four years. Fisher's argument predicts that large mutations in high-field-distortion environments have low probability of being adaptive. Four

years is the threshold, matching the EU AI Act's negotiation period. Falsification: regulation remaining without substantive reform for more than four years.

P6: The rate of substantive compliance with algorithmic transparency obligations will be below 30% in the first three years of any specific norm's validity. Formal compliance will install rapidly (high CDI), but the correlation between formal and substantive compliance will follow the Law 27,401 pattern. Falsification: substantive compliance rate above 60%.

7. Evolutionarily Viable Regulatory Design

The conclusion of this analysis is not that Argentina should not regulate AI. It is that the generative mechanism producing existing regulation produces structures with evolutionarily dysfunctional characteristics, and that those characteristics are predictable before the regulation exists. Predicting dysfunction before the fact is not pessimism: it is the first step toward designing differently.

Three principles emerge from integrating the frameworks presented.

The first is **proportionality between technological velocity and regulatory velocity**. Fisher's argument establishes that the optimal size of a mutation is a function of the distance to the adaptive optimum, which in fast-changing environments is a moving variable. Regulation designed for 2024 AI systems may be maladaptive for 2026 systems without any policy failure intervening: the environment moved. Regulatory design respecting this principle works with automatic sunset clauses — two to three years for technical standards, five for liability norms — with mandatory review and inverted justification burden: those wishing to maintain the norm must demonstrate it remains adaptive, not those wishing to repeal it. This does not exist in any AI legislative bill currently before the Argentine Congress.

The second is **assignment of competencies to existing organisms with verifiable technical capacity**. The architectural construction mechanism produces new organisms that take five to ten years to develop real technical capacity. The Energy Subsidy Coordination Unit, created by Executive Order 332/2022, took sixteen months to produce its first usable technical report; ENACOM took three years from its creation in 2015 to develop service quality audit capacities equivalent to those of the CNC it replaced. AI requires technical capacity on day one, not year five. INTI, CONICET, and the Secretariat of Public Innovation have human capital that no new organism will have in the short term. Assigning AI regulatory competencies to existing structures with verified capacity, with specific mandates and additional budget but without creating new bureaucracies, has higher probability of producing effective regulation than creating implementing authorities from scratch.

The third is **distinction between outcome standards and process standards**. The parasitic mechanism thrives in environments where the regulator measures inputs (documentation, certifications, committees) rather than outcomes (harms avoided, explanations genuinely comprehensible, biases detected and corrected). Paper 10 documented that compliance programs with CDI of 9.00 had hotlines, committees, and international certifications; the only program that produced nine prosecutions and fifty raids had CDI of 0.30

and no ISO certification. The same inversion is predicted for AI regulation. Regulation requiring verifiable outcomes — documented error rates, impugnation mechanisms actually used, traceable corrections — is structurally more resistant to parasitism than regulation requiring formal processes.

None of these three principles requires constitutional reform. All are implementable through ordinary legislative or regulatory decision. The difficulty is not technical or legal: it is that the chimera's double activation mechanism produces constant pressure in the opposite direction. Each time a legislator proposes an outcome norm instead of a process norm, the French arm signals that the state needs a structure to define and certify what counts as an outcome. Each time assigning competencies to an existing organism is proposed, the North American arm signals that that organism lacks the specific constitutional mandate to protect the threatened constitutional right.

The chimera is not resolved through good regulatory intentions. It is navigated with awareness of its mechanisms.

8. Limitations

Three limitations merit explicit acknowledgment, not as academic ritual but because they affect the interpretation of predictions.

The first concerns data. The Argentine AI legislative bills informing the analysis in Section 3 are those introduced through February 2026, when this manuscript closes. The base is limited in scope and does not include provincial legislation, which in some cases has independent initiatives. The textual similarity analysis proposed in P4 would require enacted legislation that does not yet exist; the prediction operates on bills, not on valid law.

The second concerns causality. The correlation between constitutional chimera and regulatory volume is consistent with the model but does not prove the chimera is the cause. Other variables — political cycles, the international conjuncture, and the structure of interest groups in the technology sector — have independent explanatory power. The model predicts direction, not exact magnitude.

The third concerns generalization. The argument about the double activation mechanism is built on the Argentine case. There is no a priori reason to suppose that other hybrid legal systems — Spain, Portugal, Latin American countries with similar inheritances — produce the same pattern with the same intensity. Testing the model in other contexts is part of the research agenda this paper opens, not closes.

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